

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Debra Nelson,

Plaintiff

v.

Curtis-Wright Corporation, *d/b/a Curtiss
Wright Electro Mechanical Corp. d/b/a
Curtiss-Wright Steam and Air Solutions*,
Stephanie Lanier, and Shane Sablotsky,

Defendants.

Case No.: 2:25-cv-00405-DCN-MHC

ORDER

This employment discrimination matter is before the Court on two motions: (1) a Motion to be Relieved as Counsel, filed by Plaintiff's Counsel, ECF No. 12; and (2) Plaintiff's Letter to the Court, construed as a Motion for Hearing and for Extension of Time, ECF No. 16.

I. MOTION TO BE RELIEVED AS COUNSEL (ECF No. 12)

On February 1, 2025, counsel for Plaintiff filed a Motion to be Relieved as Counsel in accordance with this Court's Local Civil Rules. ECF No. 12. Plaintiff's Counsel asserted that there has been "a fundamental disagreement regarding the substance of the case and several other matters which have destroyed the ability of the attorney to properly represent the Plaintiff." *Id.* at 1. Defendants do not oppose Counsel's Motion. ECF No. 18 at 1.

Counsel supplemented her Motion in accordance with this Court's Order directing her to ensure that Plaintiff understood her ability to file an objection to the Motion in the form of a signed letter. ECF Nos. 13; 17. Pursuant to Local Rule 83.I.07 (DSC), Plaintiff's Counsel certified that Plaintiff, Debra Nelson, was notified of the filing of Counsel's Motion and of the time frame for objecting or otherwise responding to it. ECF Nos. 12; 12-1; 19.

On February 14, 2025, Plaintiff filed a Letter requesting a Hearing and an Extension of Time, ECF No. 16. Her Letter did not express opposition to Counsel's withdrawal, and she has not filed any objection to Counsel's Motion.

Upon consideration of the foregoing, Counsel's unopposed Motion is **GRANTED**. It is hereby **ORDERED** that Bonnie Travaglio Hunt is relieved as counsel for Plaintiff in this case.

Ms. Hunt must send a copy of this Order to Plaintiff and file proof of service with the Clerk of Court on or before February 25, 2025. The Clerk is also directed to place a copy of this Order in the U.S. mail to Plaintiff at the physical address provided by Plaintiff in her Letter, ECF No. 16 at 1.

II. MOTION FOR HEARING AND FOR EXTENSION OF TIME (ECF No. 16)

On February 14, 2025, Plaintiff filed a Letter in which she requested a continuance of the deadline to respond to the Motion to Dismiss so that she can find a new attorney. ECF No. 16. Defendants do not oppose Plaintiff's Motion for Extension of Time to give Plaintiff more time to search for new counsel. ECF No. 18 at 1.

In her Letter, Plaintiff also requests a hearing to present documentation to the court, and she attaches several emails related to her Counsel's representation. ECF No. 16.

Upon review of the parties' filings before the Court, the Court has determined that a hearing on the Motion to Withdraw would not aid in the decisional process. Accordingly, to the extent Plaintiff has requested a hearing on the Motion to Withdraw, Plaintiff's Motion for Hearing (ECF No. 16) is **DENIED**. Plaintiff's Motion for Extension of Time to respond to the Motion to Dismiss is **GRANTED**. Following entry of this Order, the Court will issue a Roseboro Order, in which the Court will allow Plaintiff additional time to respond to the Motion to Dismiss.

III. NOTICE TO PRO SE PLAINTIFF (ADDRESS ORDER)

Plaintiff has indicated that she intends to retain new counsel, but she is currently representing herself in this action. Pursuant to Rule 5 of the Federal Rules of Civil Procedure, any documents filed subsequent to the initial pleading must be served on parties. Unless otherwise ordered, service of subsequently filed documents on a party represented by an attorney is made on the attorney. Service on an attorney who has made an appearance in this Court is effected by the Court's Electronic Case Filing system through a computer-generated notice of electronic filing.

Any future filings in this case by pro se Plaintiff must be sent to the Clerk of Court, Post Office Box 835, Charleston, South Carolina 29402. Filings cannot be made via email. All documents requiring Plaintiff's signature shall be signed with Plaintiff's full legal name written in her own handwriting. Pro se litigants shall **not** use the "s/typed name" format used in the Electronic Case Filing System. In all future filings with this Court, Plaintiff is directed to use letter-sized (8½ inches by 11 inches) paper only, to write or type text on one side of a sheet of paper only and not to write or type on both sides of any sheet of paper. Plaintiff is further instructed not to write to the edge of the paper, but to maintain one-inch margins on the top, bottom and sides of each paper submitted.

At this time and unless and until a new attorney makes an appearance in this court on behalf of Plaintiff, Plaintiff is a pro se litigant. Her attention is directed to the following important notice:

You are ordered to always keep the Clerk of Court advised **in writing (Post Office Box 835, Charleston, South Carolina 29402)** if your address changes for any reason, so as to assure that orders or other matters that specify deadlines for you to meet will be received by you. If, because of your failure to comply with this Order, you fail to meet a deadline set by this Court, **your case may be dismissed for violating this Order.** Therefore, if you have a change of address before this case is ended, you must comply with this Order by immediately advising the Clerk of Court in writing of such change of address and **providing the Court with the docket number of all pending cases you have filed with this Court.** Your failure to do so will not be excused by the Court.

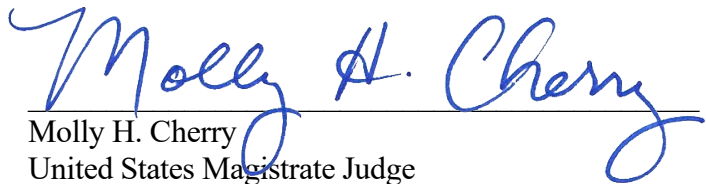
IV. NOTICE TO DEFENDANTS

Because Plaintiff is proceeding pro se at this time, she does not receive filings through the Court's electronic-filing (ECF) system. Pursuant to Rule 5(d) of the Federal Rules of Civil Procedure, when a paper that is required to be served is served by means other than the ECF system, "a certificate of service must be filed with [the filed paper] or within a reasonable time after service." Fed. R. Civ. P. 5(d)(1)(B)(i). Accordingly, unless and until an attorney makes an appearance on behalf of Plaintiff, all filings by Defendants that are required to be served must be accompanied by a certificate of service.

V. CONCLUSION

For the foregoing reasons, the Motion to be Relieved as Counsel (ECF No. 12) is **GRANTED**. The Motion for Hearing and for Extension of Time (ECF No. 16) is **DENIED, in part, and GRANTED, in part**.

IT IS SO ORDERED.


Molly H. Cherry
United States Magistrate Judge

February 20, 2025
Charleston, South Carolina